

## 23STCV16779 23STCV16779

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-07

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### MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

Motion filed on June 1, 2026.

MOVING PARTY: Armando Arturo Aragon (Plaintiff)

RESPONDING PARTY: Kent Tanaka (Defendant)

NOTICE: OK

RELIEF REQUESTED: Plaintiff seeks leave to file a Second Amended Complaint substituting Katie Tanaka for Doe 1.

RULING: The motion is denied as moot.

### BACKGROUND

Plaintiff filed the Complaint on July 18, 2023. On December 15, 2025, Plaintiff filed an Amendment to Complaint substituting Katie Tanaka for Doe 1 under Code of Civil Procedure section 474.

On June 1, 2026, Plaintiff filed an ex parte application seeking leave to file a Second Amended Complaint for the same substitution, together with a supporting memorandum and declaration. Plaintiff also filed another Amendment to Complaint substituting Katie Tanaka for Doe 1.

On June 3, 2026, the Court denied ex parte relief, deemed the application a noticed motion, and set the motion for hearing on August 7, 2026. The Court also continued the OSC re dismissal for failure to file proof of service for Katie Tanaka to the same date. Defendant filed an opposition on July 23, 2026. No timely reply was filed.

## DISCUSSION

Code of Civil Procedure section 474 provides that when a plaintiff is "ignorant of the name of a defendant," the defendant may be designated by a fictitious name, and "when his true name is discovered, the pleading or proceeding must be amended accordingly."

Here, Plaintiff already amended Katie Tanaka for Doe 1 on December 15, 2025. The moving papers identify no other proposed amendment. There is therefore no remaining relief for the Court to grant. The motion is denied as moot.

## CONCLUSION

The Motion for Leave to File Second Amended Complaint is Denied.